

24 February 2010

DEMOCRATIC REPUBLIC OF THE CONGO

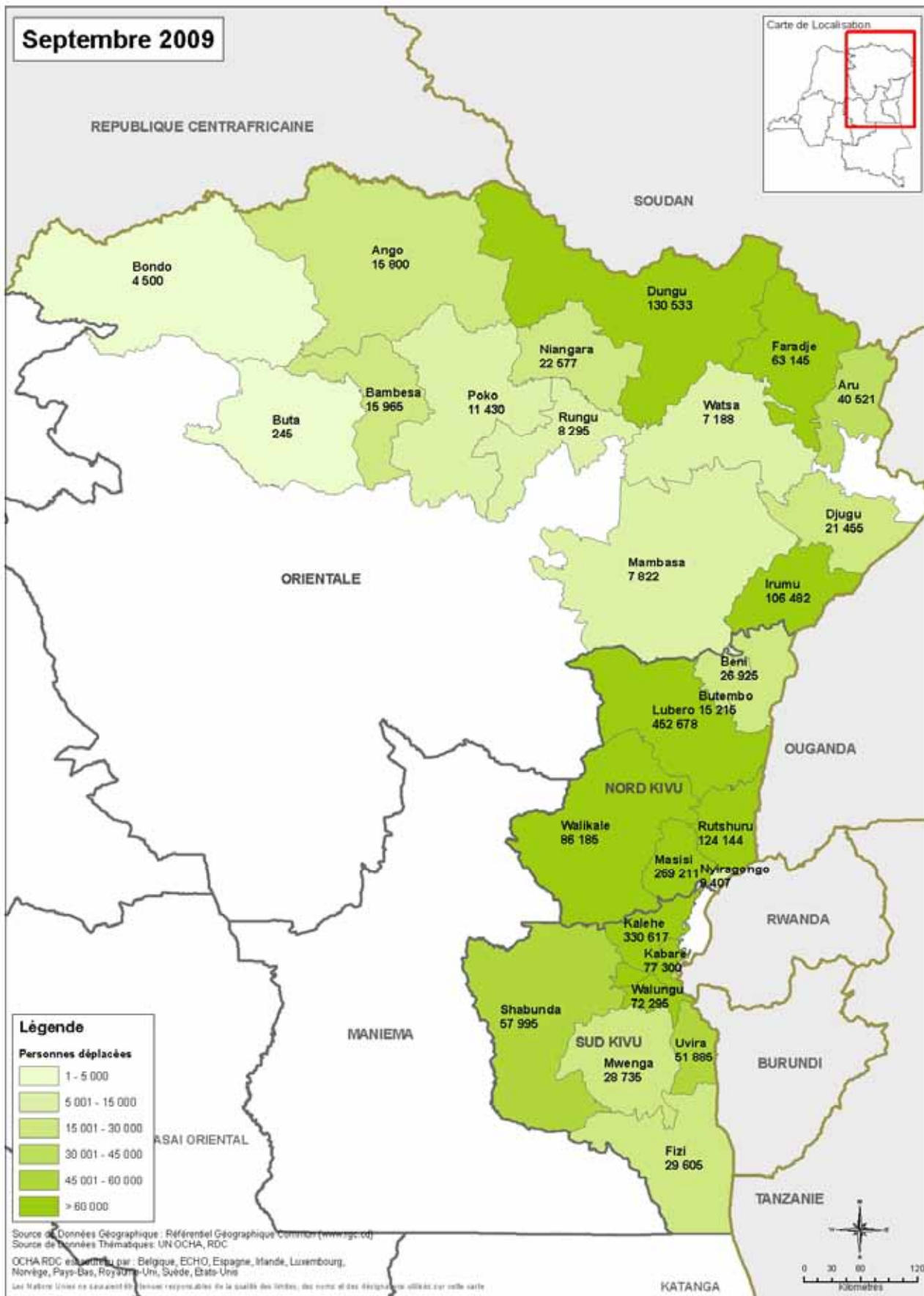
Over 2.1 million IDPs in the context of deteriorating humanitarian conditions

Fighting between militia groups and Congolese armed forces supported by the UN, as well as attacks and violence against civilians, caused the displacement of around a million people in the east of the Democratic Republic of the Congo (DRC) in 2009. As a result of these and earlier episodes, over 2.1 million people were displaced in North and South Kivu and Orientale Province as of the end of 2009. Many internally displaced people (IDPs) have not received assistance from international agencies, whose access has been blocked by the insecurity. Tens of thousands of IDPs have sought shelter in camps and spontaneous settlements, as the resident population's capacity to host them has declined.

Since the mid-1990s, millions of Congolese have fled their homes to escape fighting between rebel groups and the government, in a complex conflict which has also involved neighbouring states. The International Rescue Committee estimated in January 2008 that some 5.4 million had died as a result of the conflict. Displacement peaked in 2003, with an estimated 3.4 million people forced from their homes, most of them in eastern DRC.

As of early 2010, the killing and rape of civilians was continuing at a horrifying rate in eastern DRC, and the protection of IDPs and other civilians there remained an urgent concern. In the context of the illegal exploitation of DRC's vast natural resources by members of the army and militia groups, of military operations against rebel groups, and of vicious attacks against the civilian population, and in the absence of a disciplined and integrated army, prospects for any improvement of the situation remained dim.

Population movements in Eastern DR Congo July - September 2009



Source: UN OCHA

More maps are available at www.internal-displacement.org

Background to displacement and recent developments

Between 1996 and 1997, and again between 1998 and 2003, DRC suffered two major wars, in which millions died and millions more were forcibly displaced. Civilians bore the brunt of the violence, as a number of rebel groups more or less closely linked to neighbouring states competed to control large areas of eastern DRC (for more information, see HD, 3 July 2009). Displacement peaked in 2003, with an estimated 3.4 million people forced from their homes, mostly in the east of the country. Many of them returned home following the withdrawal of foreign armies and the establishment of a power-sharing transitional government in mid-2003.

In 2006, millions of voters elected Joseph Kabila as president in the country's first multi-candidate vote in over 45 years. Most IDPs could not vote due to insecurity, or because they had lost electoral cards or had them seized by armed groups (OCHA, 15 August 2006; NRC, April 2006).

Despite these political milestones, violence and displacement continued, as the government continued to fight militias in a bid to re-establish its authority throughout the east. In 2004 General Laurent Nkunda left the Congolese army and created the National Congress for the Defence of the People (Congrès national pour la défense du peuple, or CNDP) with the stated objective of protecting the country's Tutsi minority (concentrated in North Kivu) against the Democratic Liberation Forces of Rwanda (Forces démocratiques pour la libération du Rwanda, or FDLR), which included some perpetrators of the 1994 genocide in Rwanda.

Some 5.4 million people were estimated to have died in DRC from August 1998 to April 2007 due to the impact of the conflict, the majority of them of infectious diseases, malnutrition, and neonatal and pregnancy-related conditions (IRC, 11 January 2008).

In January 2008, the government signed a ceasefire agreement in Goma with 22 armed groups, including the CNDP and Mai Mai local militia groups operating in North and South Kivu, but the agreement was not respected. The governments of DRC and Rwanda made joint commitments regarding the disarmament of the FDLR in a separate agreement signed in Nairobi in November 2007, but the rebel group continued its activities in North and South Kivu.

Fighting continued through 2009 on a number of fronts. Following an improvement in relations between the Congolese and Rwandan leaderships in early 2009, the countries jointly led Operation Umoja Weto against the FDLR in North Kivu, without MONUC support. After the end of the joint operations, the Congolese army launched in North and South Kivu Operation Kimia II against the FDLR, with logistical support from MONUC, the UN peacekeeping mission in DRC. The army also clashed with Mai Mai militias, and the FDLR and Mai Mai groups both made widespread attacks in reprisal against civilian communities. By the end of the year, an estimated 990,000 people were displaced in North Kivu, and 690,000 in South Kivu (OCHA, 30 November 2009). Operation Kimia II finished at the end of December, and on 1 January 2010, the army and MONUC started Operation Amani Leo, scheduled for three months, to combat the FDLR in South Kivu. According to MONUC, the operation plans to protect civilian populations as well as support the government's stabilisation efforts. It also specified that it would provide its support under the condition that operations are planned and conducted in accordance with international human rights, humanitarian and refugee law (MONUC, 7 January 2010).

Since mid-2008, the Ugandan Lord's Resistance Army (LRA) rebel group has led reprisal attacks against communities in DRC, killing, abducting and looting from civilians, and leading to high levels of displacement. The armies of Uganda, DRC and Southern Sudan have launched op-

erations in the Upper Uele District of Orientale Province against the LRA. Following an assault by Ugandan troops, the LRA killed more than 865 civilians at the end of December 2008 and early January 2009, often hacking their victims to death with machetes and axes or crushing their skulls with heavy sticks (HRW, 16 February 2009). LRA attacks in Lower Uele and Upper Uele, and by local militias in Ituri District, led to the displacement of several hundred thousand people in 2009, bringing the number of IDPs in Orientale Province to 450,000 at the end of the year (OCHA, 30 November 2009).

In addition, tens of thousand of people fled inter-communal clashes in western DRC's Equateur Province at the end of 2009, which were reportedly fuelled by demobilised militia members. At least 60,000 people were displaced in other parts of the Province, while over 125,000 sought refuge in the Republic of Congo and the Central African Republic (OCHA, 9 February 2010).

Increasing displacement and lack of durable solutions

The UN estimated that there were over 2.1 million IDPs as of the end of 2009 (OCHA, 30 November 2009). Over a million people were displaced in 2009 alone, the majority of them in North Kivu Province, and the level of displacement was at the end of the year the highest since 2004. At the same time, an estimated million people or more returned home, half of them in North Kivu. Return has not always been durable, as the reduction of food rations in camps and the arrival of the new planting season rather than any improvement in security have led people to go back. Many people returned home to find their land occupied, while renewed clashes in return areas also forced people to flee again soon after their arrival home.

Most IDPs in eastern DRC have been displaced several times and some 75 per cent have taken

refuge with host communities or in hiding in forests. As communities have become increasingly unable to cope with the influx of people, several hundred thousand IDPs in North Kivu have built makeshift settlements, found refuge in dilapidated buildings or in camps managed by international NGOs under the coordination of UNHCR. According to UNHCR, from December 2009 to January 2010, over 15,000 new IDPs were registered at dozens of camps, bringing the total number of IDPs in the 47 UNHCR-run sites in the region to 116,000 (IRIN, 27 January 2010).

Main protection issues

The killing and rape of civilians has continued at a horrifying rate in eastern DRC in 2009 according to numerous reports, and the protection of IDPs and other civilians in eastern DRC remains an urgent concern. Members of the army as well as armed militias have continued to commit human rights violations and abuses including killing, rape, sexual exploitation, abduction, forcible conscription of children, looting, plundering of crops, illegal taxation and general harassment of civilians. In 2009, the army included in its ranks commanders and soldiers with appalling human rights records, including several war criminals (Enough Project, 16 July 2009).

According to Human Rights Watch, during 2009, "Government and rebel forces deliberately attacked civilians [...], chopping them to death by machete, shooting civilians dead while they fled, and burning them in their homes" (HRW, 14 December 2009). Some IDP camps are in remote areas, making them more vulnerable to attacks, forced recruitment and other forms of harassment. In January 2010, armed attackers raided two IDP camps in Masisi, North Kivu (IRIN, 8 February 2010).

Since 2003, the government has sought to integrate into the army troops from various militias,

as well as to disarm and repatriate members of armed groups such as the FDLR, but the integration process has been marred by corruption and by conflicts between soldiers which have often reflected local ethnic divisions, particularly in the provinces of North Kivu and South Kivu.

Members of the army as well as of militia groups have reportedly been involved in the illegal exploitation of natural resources including gold, coltan and diamonds, and the smuggling of goods and weapons, contributing to further human rights violations, insecurity and displacement (GW, 20 July 2009). To counter these activities, the UN Security Council (UNSC) sought through Resolution 1807 of 2008 to freeze the assets and ban the travel of perpetrators of forced displacement and serious violations of international law in DRC.

Despite all initiatives to counter sexual violence, rape continues to be widespread. According to an Oxfam survey, sexual violence has increased dramatically since the military offensives against the FDLR began in January 2009 (Oxfam, 14 July 2009). The UN also reported an alarming increase in sexual violence in South Kivu in 2009, committed not only by FDLR militia but also by government soldiers (UNSC, 30 June 2009; IRIN, 3 June 2009). According to UNFPA, some 8,300 women were raped in the Kivus in 2009 (UN News Centre, 9 February 2010). In addition to reported cases, many survivors of sexual violence are ashamed or unable to come forward to seek help. Thousands of women have also been abducted and kept as slaves by armed groups to provide sexual, domestic and agricultural services.

Commanders of government soldiers and rebel fighters have let fighters to commit widespread sexual violence to attack the fundamental values of communities, to scare the civilian population into submission, to punish them for allegedly supporting enemy forces or to provide gratification for the soldiers or militia members. The adoption of two laws on sexual violence in 2006 has made

no difference, due to the weakness of the judicial system and the lack of protection for rape victims. Over the past years, several international peacekeepers stationed in eastern DRC have also been investigated for engaging in sexual exploitation and abuse.

Forced recruitment of children continued in eastern DRC in 2009 (UNICEF, 22 June 2009). UNICEF reported that displaced children in North Kivu, particularly those separated from their families, were at particular risk of being recruited by militias, but also of being raped and exploited (UNICEF, 14 November 2008).

The access to basic necessities of IDPs and other vulnerable people in eastern DRC has deteriorated over the past year in the context of military operations and reprisals and continuing abuses against the population. The vast majority of IDPs and returnees have no access to health centres and schools, or to clean water, food, seeds, tools, clothes or building materials. Many IDPs missed planting and harvesting seasons in 2009 due to their displacement and also the looting of crops from their fields. With health care structures collapsing, displaced people are particularly vulnerable to infectious diseases such as cholera, measles, bubonic plague, due to their precarious living conditions and lack of access to clean drinking water.

National and international responses

Measures by the central government and provincial authorities have so far fallen very short of meeting the needs of IDPs, despite their obligations to protect displaced populations. Instead, local authorities and networks have been at the forefront of care for IDPs. The government has ratified the Pact on Security, Stability and Development in Africa's Great Lakes region, which came into force in June 2008, and in doing so

has committed to incorporate the UN's Guiding Principles on Internal Displacement into national law. During his first visit to DRC in February 2008, the Representative of the UN Secretary-General on the human rights of IDPs called upon the government to speedily enact a legislative framework for the protection of IDPs, and urged the international community to support this endeavour (HRC, 16 May 2008). As of February 2010, the government had not enacted specific legislation to protect IDPs or to foster durable solutions.

MONUC, the largest UN peacekeeping mission in the world with 20,000 troops, is authorised under Chapter VII of the UN Charter to use all necessary means to protect civilians under imminent threat of physical violence. Since early 2009, 15 MONUC joint protection teams have gathered information on areas where civilians might be at risk of attack, but Human Rights Watch has reported that their recommendations to UN peacekeepers and Congolese forces have rarely been followed (HRW, 2 July 2009). MONUC also has a mandate to monitor compliance with the arms embargo imposed by the UNSC on armed groups operating in eastern DRC, despite which, weapons have continued to be channelled to various armed groups. Following a May 2009 visit to DRC, the UNSC noted that MONUC's competing roles of protecting civilians and supporting army-led operations had inevitable humanitarian consequences (UNSC, 11 June 2009). MONUC has been sharply criticised by international NGOs for its seemingly unconditional support to the army's operations, and the lack of clear rules of engagement to protect civilians. Its mandate is up for renewal by the UNSC at the end of May 2010; DRC President Joseph Kabila is believed to want a reduced MONUC presence, while UN sources said that any withdrawal would be gradual and dependent on security (Alertnet, 10 February 2010).

Humanitarian agencies have struggled to respond to the emergency needs of IDPs and other vulnerable people in a context of ongoing military

operations and increased attacks against humanitarian workers. In North and South Kivu, humanitarian NGOs are particularly affected by insecurity, because of their greater presence in the field and because, unlike UN agencies, they avoid using a military escort. Meanwhile, in February 2010, aid workers reported that 100,000 IDPs were inaccessible due to LRA attacks in Upper and Lower Uele District (IRIN, 12 February 2010). Other factors hampering the delivery of support to displaced people and returnees include the sheer size of the country, the absence of roads and the high degree of geographical dispersal of IDPs.

In February 2010, Fidèle Sarassoro replaced Ross Mountain as the UN's Resident Coordinator/ Humanitarian Coordinator in DRC. Since 2006, UN agencies and international NGOs have worked to make relief efforts more systematic and predictable by means of a response coordinated by "cluster". Of particular relevance to IDPs are the Protection Cluster led by UNHCR and the Reintegration and Community Recovery Cluster led by UNHCR and UNDP. The Protection Cluster has developed together with MONUC a handbook for peacekeepers, detailing measures for the protection of IDPs and other civilians (Protection Cluster/MONUC, 2009).

UN agencies, national and international NGOs and the International Committee of the Red Cross (ICRC) are providing emergency assistance to IDPs, as well as transport assistance and return packages to returning IDPs. A rapid response mechanism managed by UNICEF and OCHA provides emergency assistance for three months to IDPs and communities hosting them. UNICEF further coordinates assistance to returning communities through the Programme of Expanded Assistance to Returns (PEAR), together with NGO partners. UNDP started in 2009 a joint UN social and economic recovery programme over 18 months intended to benefit 125,000 IDPs in South Kivu. In February 2009 UNOPS and partners set up a data centre for IDP populations both in camps

and in host families in North and South Kivu, in order to learn about their displacement history, family composition and vulnerabilities and so help to better target assistance (UNHCR/UNOPS, 10 July 2009). WFP is coordinating food distribution to one million vulnerable people in eastern DRC, many of them IDPs.

In order to strengthen the response to the crisis in DRC, the humanitarian community has requested some \$827 million through its 2010 Humanitarian Action Plan (HAP) (OCHA, 30 November 2009). Possible funding sources for this plan include a multi-donor mechanism called the Pooled Fund, the Central Emergency Response Fund (CERF) through its grants for under-funded emergencies, and also bilateral donors. In 2010, the UN and the government are also planning to implement the Stabilisation and Reconstruction Plan (STAREC) and the UN Security and Stabilisation Support Strategy (UNSSSS), which focus on early recovery and transition.

Despite the extent of serious human rights violations, the UN Human Rights Council decided in March 2008 not to renew the mandate of the Independent Expert on the situation of human rights in DRC, established in 2004.

Note: This is a summary of IDMC's internal displacement profile on The Democratic Republic of the Congo. The full profile is available online [here](#).

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About the Internal Displacement Monitoring Centre

The Internal Displacement Monitoring Centre, established in 1998 by the Norwegian Refugee Council, is the leading international body monitoring conflict-induced internal displacement worldwide.

Through its work, the Centre contributes to improving national and international capacities to protect and assist the millions of people around the globe who have been displaced within their own country as a result of conflicts or human rights violations.

At the request of the United Nations, the Geneva-based Centre runs an online database providing comprehensive information and analysis on internal displacement in some 50 countries.

Based on its monitoring and data collection activities, the Centre advocates for durable solutions to the plight of the internally displaced in line with international standards.

The Internal Displacement Monitoring Centre also carries out training activities to enhance the capacity of local actors to respond to the needs of internally displaced people.

In its work, the Centre cooperates with and provides support to local and national civil society initiatives.

For more information, visit the Internal Displacement Monitoring Centre website and the database at www.internal-displacement.org.

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